

DEPARTMENT OF HOMELAND SECURITY
**DHS SUBCONTRACTING PLAN
 REVIEW CHECKLIST**

All items on this Subcontracting Review Checklist shall be completed by the Contracting Officer (CO) with information from the proposed prime contract and the subcontracting plan. If the plan is missing any item listed in Section II, "Required Elements of the Subcontracting Plan", it is incomplete and shall not be accepted by the CO. After the checklist is completed by the CO, the checklist shall be submitted to the component Small Business Specialist (SBS) for review, then submitted to the SBA Procurement Center Representative (PCR) for review, and finally, submitted back to the CO. An acceptable plan must be approved by the CO prior to contract award.

Contractor/Address: _____

Contract Number: _____ Contract Value: Base _____ Options: _____

Plan Expiration Date: _____ Base/Options - Periods: _____

Product or Service: _____

I. TYPE OF SUBCONTRACTING PLAN (check one)		
☐ Individual Contract Plan ☐ Master Plan with Individual Goals ☐ Commercial Products Plan		
II. REQUIRED ELEMENTS OF THE SUBCONTRACTING PLAN		
A. Elements	YES	NO
(1) Separate percentage goals for using small business concerns of all types as subcontractors;		
(2) A statement of the total dollars planned to be subcontracted and a statement of the total dollars planned to be subcontracted to small business concerns of all types, as a percentage of total subcontract dollars. For individual subcontracting plans only, a contracting officer may require the goals referenced in paragraph (a)(1) of this section to be calculated as a percentage of total contract dollars, in addition to the goals established as a percentage of total subcontract dollars;		
(3) A description of the principal types of supplies and services to be subcontracted and an identification of types of supplies or services planned for subcontracting to small business		
(4) A description of the method used to develop the subcontracting goals;		
(5) A description of the method used to identify potential sources for solicitation purposes;		
(6) A statement as to whether or not the offeror included indirect costs in establishing subcontracting goals, and a description of the method used to determine the proportionate share of indirect costs to be incurred with small business		
(7) The name of an individual employed by the offeror who will administer the offeror's subcontracting program, and a description of the duties of the individual;		
(8) A description of the efforts the offeror will make to ensure that small business concerns of all types have an equitable opportunity to compete for subcontracts;		
(9) Assurances that the offeror will include the clause at 52.219-8, Utilization of Small Business Concerns, and that the offeror will require all subcontractors (except small business concerns) that receive subcontracts in excess of \$700,000 (\$1.5 million for construction) to adopt a plan that complies with the requirements of the clause at 52.219-9, Small Business Subcontracting Plan;		
(10) Assurances that the offeror will—		
(i) Cooperate in any studies or surveys as may be required;		
(ii) Submit periodic reports so that the Government can determine the extent of compliance by the offeror with the subcontracting plan;		

A. Elements (continued)					YES	NO			
(iii) Include subcontracting data for each order when reporting subcontracting achievements for indefinite-delivery, indefinite-quantity contracts intended for use by multiple agencies;									
(iv) Submit the Individual Subcontract Report (ISR), and the Summary Subcontract Report (SSR) using the Electronic Subcontracting Reporting System (eSRS) (http://www.esrs.gov), following the instructions in the eSRS.									
(v) Ensure that its subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using the eSRS;									
(vi) Provide its prime contract number, its unique entity identifier and the e-mail address of the offeror's official responsible for acknowledging receipt of or rejecting the ISRs to all first-tier subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs; and									
(vii) Require that each subcontractor with a subcontracting plan provide the prime contract number, its own unique entity identifier, and the e-mail address of the subcontractor's official responsible for acknowledging receipt of or rejecting the ISRs, to its subcontractors with subcontracting plans;									
(11) A description of the types of records that will be maintained concerning procedures adopted to comply with the requirements and goals in the plan, including establishing source lists; and a description of the offeror's efforts to locate small business concerns of all types and to award subcontracts to them;									
(12) Assurances that the offeror will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that the offeror used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal. Responding to a request for a quote does not constitute use in preparing a bid or proposal. An offeror used a small business concern in preparing the bid or proposal if–									
(i) The offeror identifies the small business concern as a subcontractor in the bid or proposal or associated small business subcontracting plan, to furnish certain supplies or perform a portion of the contract; or									
(ii) The offeror used the small business concern's pricing or cost information or technical expertise in preparing the bid or proposal, where there is written evidence of an intent or understanding that the small business concern will be awarded a subcontract for the related work if the offeror is awarded the contract;									
(13) Assurances that the contractor will provide the contracting officer with a written explanation if the contractor fails to acquire articles, equipment, supplies, services or materials or obtain the performance of construction work as described in (12) of this section. This written explanation will be submitted to the contracting officer within 30 days of contract completion;									
(14) Assurances that the contractor will not prohibit a subcontractor from discussing with the contracting officer any material matter pertaining to payment to or utilization of a subcontractor; and									
(15) Assurances that the offeror will pay its small business subcontractors on time and in accordance with the terms and conditions of the subcontract, and notify the contracting officer if the offeror pays a reduced or an untimely payment to a small business subcontractor.									
B. GOALS (Note: %'s are calculated against the total subcontracting dollars in item #1)									
1. Total Subcontracting									
Base Period		1st Option		2nd Option		3rd Option		4th Option	
\$		\$		\$		\$		\$	
2. Small Business Subcontracting (subset of item 1)									
Base Period		1st Option		2nd Option		3rd Option		4th Option	
\$		% \$		% \$		% \$		% \$	

3. Small Disadvantaged Business Subcontracting (subset of item 1)									
Base Period		1st Option		2nd Option		3rd Option		4th Option	
\$	%	\$	%	\$	%	\$	%	\$	%
4. Women-Owned Small Business Subcontracting (subset of item 1)									
Base Period		1st Option		2nd Option		3rd Option		4th Option	
\$	%	\$	%	\$	%	\$	%	\$	%
5. Historically Black Colleges and Universities (HBCU) and Minority Institutions (MI) (For Contracts with U.S. Coast Guard Only) (subset of item 1)									
Base Period		1st Option		2nd Option		3rd Option		4th Option	
\$	%	\$	%	\$	%	\$	%	\$	%
6. HUBZone Small Business Subcontracting (subset of item 1)									
Base Period		1st Option		2nd Option		3rd Option		4th Option	
\$	%	\$	%	\$	%	\$	%	\$	%
7. Veteran-Owned Small Business Subcontracting (subset of item 1)									
Base Period		1st Option		2nd Option		3rd Option		4th Option	
\$	%	\$	%	\$	%	\$	%	\$	%
8. Service Disabled Veteran-Owned Small Business Subcontracting (subset of item 1)									
Base Period		1st Option		2nd Option		3rd Option		4th Option	
\$	%	\$	%	\$	%	\$	%	\$	%
9. Alaska Native Corporations (ANCs) and Indian Tribes that are reported in block 3, that have not been certified by the Small Business Administration as Small Disadvantaged Businesses (subset of item 1)									
Base Period		1st Option		2nd Option		3rd Option		4th Option	
\$	%	\$	%	\$	%	\$	%	\$	%
10. Alaska Native Corporations (ANCs) and Indian Tribes that are reported in block 2, that are not Small Business (subset of item 1)									
Base Period		1st Option		2nd Option		3rd Option		4th Option	
\$	%	\$	%	\$	%	\$	%	\$	%
III. PLAN EVALUATION									
A. Sources checked to determine contractor compliance with previous subcontracting plans and verify reasonableness of proposed goals.									
B. Obtain information available from the cognizant contract administration office: No ___ Yes, Name: _____									
C. Evaluate the offeror's past performance in awarding subcontracts for the same or similar products or services to small business concerns.									
D. Evaluate the offeror's overall past performance and consider the performance of other contractors on similar efforts.									
E. Other Agency Contracting Officers: No ___ Yes, Name: _____									

IV. SIGNATURES/REVIEW

Name/Small Business Specialist

Date

Name/SBA/PCR

Date

ACCEPT/APPROVAL

Name/Contracting Officer

Date